

STATE OF NEW YORK

9278 -- A

IN SENATE

February 24, 2026

Introduced by Sen. FERNANDEZ -- read twice and ordered printed, and when printed to be committed to the Committee on Finance -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the state finance law, in relation to interest earned on the statewide opioid settlement agreement money

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivision 4 of section 99-nn of the state finance law, as
2 amended by chapter 171 of the laws of 2022, is amended to read as
3 follows:

4 4. Notwithstanding subdivision eleven of section four of this chapter,
5 such fund shall consist of money received by the state pursuant to any
6 statewide opioid settlement agreements, including any interest earned on
7 such money, as defined in section 25.18 of the mental hygiene law. All
8 moneys shall remain in such fund unless and until directed by statute or
9 appropriation. Provided further, that any New York subdivision that
10 receives funds pursuant to any statewide opioid settlement agreement
11 shall ensure that any interest earned on opioid settlement funds be
12 spent on approved uses, as such term is defined in and consistent with
13 the provisions of the respective opioid settlement agreement and its
14 exhibits, and shall ensure that such spending on approved uses is done
15 in the same manner as such subdivision distributes other opioid settle-
16 ment funds that are required to be spent for approved uses.

17 § 2. This act shall take effect immediately.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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